Supplemental Statement of Kevin D. Turnage
Administrative Inquiry Interview – September 25, 2025 – Affidavit 1

I. Purpose of This Statement

Pursuant to 28 U.S.C. § 1746, I, **Kevin Turnage**, submit this Supplemental Statement to accompany the affidavit 1 prepared from the September 25, 2025, Administrative Inquiry Interview. This statement is necessary to correct inaccuracies in the transcription, clarify my answers, and document procedural irregularities affecting the integrity of the process.

II. Corrections to Affidavit Responses

My answers were not recorded verbatim or were inaccurately reflected. For clarity, corrections are presented by affidavit question/answer number:

Q1/A1
My affidavit currently states only: *"Policy and Procedure Officer."*

My corrected answer should state:
"I am the Policy and Procedure Officer. In this role, I am responsible for reviewing, coordinating, and monitoring policies and procedures to ensure compliance with federal standards, accreditation requirements, and patient safety obligations. In accordance with the Policy Management Policy in place at the time, and as defined by my official Position Description (PX3147, GS-0610-12), my duties include: analyzing and revising organizational policies for validity and consistency; ensuring compliance with Joint Commission, CMS, OSHA, and other applicable standards; initiating and coordinating timely reviews; elevating unresolved issues through the chain of command; facilitating multidisciplinary teams for policy development; and advising management on implementation of new regulations. My responsibilities are directly tied to ensuring compliance, operational continuity, and patient safety within the Phoenix Service Unit."

Q2/A2
My affidavit currently states only: *"Second Line Supervisor."*

My corrected answer should state:
"Mr. Clinton Pope was my second-line supervisor. My relationship with him was strictly professional, limited to the reporting structure of the agency. All of my communications with Mr. Pope were related to official duties, compliance, and patient care responsibilities."

Q3(a)/A3(a)
My affidavit currently states: *"Not sure what you're asking."*

My corrected answer should state:
"The question as presented was unclear to me at the time. To be clear, I deny that my emails were false, unsubstantiated, or harassing. My emails reported compliance and patient safety

concerns through the chain of command, which are protected disclosures under 5 U.S.C. § 2302(b)(8)."

Q3(b)/A3(b)
My affidavit currently reads informally and does not fully reflect my position.

My corrected answer should state:
"I deny that my emails were negligent or malicious. I did not harass or create a hostile work environment for anyone. My emails reported compliance and patient safety concerns that Mr. Pope, as my second-line supervisor, failed to address. When issues were not resolved, I elevated them appropriately through the chain of command, consistent with federal policy and my professional duty under the Code of Ethics for Nurses. The only emails I sent were directed either to his direct line of supervision or to headquarters. My access to government records was revoked, so I cannot review the specific emails referenced, but my intent was to fulfill ethical and legal obligations, not to act negligently or maliciously."

Q3(c)/A3(c)
My affidavit currently states: *"That's false."*

My corrected answer should state:
"I deny that I demonstrated any pattern of inflammatory language. My communications were professional, fact-based, and focused on compliance with federal standards and patient safety. At no point were my emails intended to increase tensions or hostility in the workplace. Rather, they were made in good faith and were protected disclosures under 5 U.S.C. § 2302(b)(8). Where there was any possibility of misinterpretation, I clarified or corrected promptly."

Q3(d)/A3(d)
My affidavit currently includes informal and repetitive language.

My corrected answer should state:
"I deny that I attempted to discredit or defame Mr. Clinton Pope. My actions consisted of reporting compliance and patient safety concerns through the appropriate chain of command and, when necessary, to headquarters. These reports were protected disclosures under the Whistleblower Protection Act, 5 U.S.C. § 2302(b)(8). I believe the initiation of this investigation is itself retaliatory, following my disclosures. On May 28, 2025, my core duties were removed, which I view as a constructive demotion. Shortly thereafter, I was placed on administrative leave after leadership became aware of my protected disclosures. These actions are consistent with reprisal, not with any misconduct on my part."

Q3(e)/A3(e)
My affidavit currently states: *"I would disagree with it."*

My corrected answer should state:
"I disagree with the claim that Mr. Pope has made genuine efforts to collaboratively improve communications or my work. In practice, his communications with me were not collaborative but directive, often removing me from policy workflows or dismissing compliance concerns I raised.

These actions reduced my ability to perform my duties and undermined open communication. Collaboration requires mutual respect and engagement, which was not reflected in his conduct toward me."

Q3(f)/A3(f)
My affidavit currently states: *"I only claim retaliation when it is retaliatory and I am not able as a nurse to follow unethical or illegal directives. Doing so would put my license at risk."*

My corrected answer should state:
"I deny that I have ever 'rebelled' against directives from Mr. Pope. I follow all lawful and ethical directives consistent with my role. I objected only when asked to carry out actions I believed to be unlawful, unethical, or contrary to patient safety. As a licensed nurse, I am bound by the American Nurses Association Code of Ethics and federal law not to comply with directives that would endanger patients, violate standards, or jeopardize my license. My objections in those circumstances were legally protected disclosures under 5 U.S.C. § 2302(b)(8), not rebellion."

Q3(g)/A3(g)
My affidavit currently states: *"That's false."*

My corrected answer should state:
"I deny that I have ever attempted to intimidate, shame, or harm Mr. Clinton Pope. My communications and actions were focused on compliance, patient safety, and my duties as a licensed nurse. Any disagreements I raised were directed toward ensuring adherence to federal standards and protecting patients, not toward personal attacks. My conduct was professional and consistent with the Code of Ethics for Nurses. To suggest otherwise mischaracterizes protected disclosures I made in good faith."

Q4/A4
My affidavit currently states: *"He didn't notify me that my conduct was unwelcome."*

My corrected answer should state:
"At no time did the complainant ever notify me that my conduct was unwelcome. I received no verbal or written communication that my emails or actions were perceived as harassment or unwelcome. My communications were professional, compliance-focused, and directed toward patient safety and federal obligations."

Q5/A5
My affidavit currently states: *"He never told me that he felt that my anything was harassing, did not tell me to stop, and that's all I can say about that other than I did not harass anyone."*

My corrected answer should state:
"The complainant never told me that he considered anything I said or wrote to be harassing, nor did he ever instruct me to stop. I categorically deny that I harassed anyone. My communications were related to compliance concerns and patient safety obligations, which are protected disclosures under 5 U.S.C. § 2302(b)(8)."

Q6/A6
My affidavit currently states: *"I have no idea other than, I, well, in retaliation like I've said before, for a protected disclosure."*

My corrected answer should state:
"I cannot know the complainant's personal motivations. However, I believe these accusations are retaliatory in nature, arising after I made protected disclosures regarding compliance and patient safety. The timing and circumstances of these allegations strongly suggest reprisal, which is prohibited under the Whistleblower Protection Act, 5 U.S.C. § 2302(b)(8)–(9)."

Q7/A7
My affidavit currently states: *"I don't know what events you're referring to."*

My corrected answer should state:
"The question was vague and unclear because no specific 'events' were identified. I cannot provide an explanation of unspecified events without clarification. If the question was meant to address my communications raising compliance and patient safety concerns, then my explanation is that those communications were made in good faith, through proper channels, and in accordance with my obligations under the Code of Ethics for Nurses and federal law."

Q8/A8
My affidavit currently states: *"I am not sure what he is referring to so I do not know who would have relevant information."*

My corrected answer should state:
"The question was vague and unclear because the complainant's allegations were not specified. Without clarity, I cannot identify who would have relevant information. If the question refers to my compliance-related communications, then my supervisors, the Chief Operating Officer, the Chief Executive Officer, and others copied on those communications would have knowledge of the issues raised."

Q9/A9
My affidavit currently states only: *"Yes."*

My corrected answer should state:
"Yes. I am aware of the Agency's harassment policy. I have reviewed it and understand its requirements."

Q9(a)/A9(a)
My affidavit currently states: *"I take this training every year, just like everyone else, and I have been claiming the harassment, having EEO complaints for harassment, so I understand it."*

My corrected answer should state:
"My understanding is that the Agency's harassment policy prohibits harassment in the workplace and requires employees to report and refrain from such conduct. I complete the

mandatory training annually, and I have previously filed EEO complaints concerning harassment, which further confirms my understanding of the policy and my rights under it."

Q10/A10
My affidavit currently states only: *"Every year."*

My corrected answer should state:
"Yes, I have taken the Agency's harassment training every year as required, and I am fully familiar with its content."

III. Reference to Records and Communications

Several interview questions referred to prior communications, including emails, policy workflow exchanges, and leadership directives. Because my access to government systems was removed before the interview, I cannot fully recollect or accurately respond.

These matters were documented in contemporaneous communications between myself, Mr. Clinton Pope, Dr. McCabe, the COO, the CEO, and the Executive Leadership Team. I respectfully note that such records are in the possession and control of the agency and request they be preserved and made available through proper legal process.

My recollection is that these communications confirm:

1. I escalated concerns through the proper chain of command.
2. My use of policy workflow terminology was consistent with my role and instructions at the time; and
3. Executive leadership and headquarters were involved in reviewing the policy matters I raised.

IV. Warnings and Assurances Statement Date Discrepancy

During the September 25, 2025 interview, Investigator Naomi Hixson stated that the interview was conducted in accordance with a Warnings and Assurances Statement I had allegedly signed on **November 15, 2025**.

I do not recall at this time whether I signed such a statement or, if I did, the date on which I signed it. However, it is not possible that I signed a document dated November 15, 2025 prior to my September 25, 2025 interview. I note this discrepancy as a procedural irregularity that undermines the accuracy of the record and may misrepresent the protections afforded to me at the time of questioning.

V. Notice Regarding WPA and PPP

These corrections and clarifications are submitted not only to ensure accuracy but also to place the agency on notice that pressing me for information I cannot recall without access to my records constitutes retaliation for protected disclosures.

Such conduct violates the **Whistleblower Protection Act, 5 U.S.C. § 2302(b)(8)**, and constitutes a **Prohibited Personnel Practice** under **5 U.S.C. § 2302(b)(9)**. My inability to answer is the direct result of management's decision to remove my system access, and any attempt to construe my lack of recall as misconduct would further constitute unlawful retaliation.

VI. Statement of Accuracy

These corrections are made in addition to the handwritten edits and initials I provided directly on the affidavits. Both this Supplemental Statement and my marked affidavits should be incorporated into the official record.

Preservation of Evidence Notice
On August 11, 2025, I sent Litigation Hold and Demand for Preservation of Evidence letters, with Certificates of Service, by U.S. Certified Mail to the following recipients:

- U.S. Department of Health and Human Services – Tracking No. 9214 8901 4298 0424 3893 17
- The Honorable Robert F. Kennedy, Jr. – Tracking No. 9214 8901 4298 0424 3893 00
- Ty Reidhead, Area Director, Phoenix Area – Tracking No. 9214 8901 4298 0424 3892 94
- Debra Ward Lund, Chief Executive Officer, Phoenix Indian Medical Center – Tracking No. 9214 8901 4298 0424 3892 87

Tracking records confirm receipt of these notices.

These letters placed the agency and its leadership under a duty to preserve all records, emails, communications, and related evidence relevant to my disclosures and the issues now under investigation. Any failure to preserve such records would constitute spoliation of evidence and a violation of federal law and discovery obligations.

Executed on September 26, 2025.

Declaration

I declare under penalty of perjury under the laws of the United States of America that the foregoing is true and correct.

By my signature below, I acknowledge that I have read and understood my Supplemental Statement consisting of six (6) pages, and further acknowledge that I have not been coerced, intimidated, or forced into making any false or untrue statements. I affirm that I have made all changes and corrections I desire to make, and I have initialed each change in the attached affidavits. This Supplemental Statement represents my final and true statement for the record.

Kevin D. Turnage